

NONLAWYER DISCLOSURE

Instructions to Licensee: Before you begin to complete the next form, you must give this nonlawyer disclosure to the landlord or tenant for whom you are filling in the blanks. (If you are filling in the blanks for both landlord and tenant, complete two nonlawyer disclosures and give one to each.)

1. Insert your name in the first 5 blank Name spaces and sign below.
2. Have the landlord or tenant whom you are assisting complete the provision regarding her/his ability to read English, and have her/him sign below.
3. Give this completed disclosure to the landlord or tenant, as appropriate. Keep a copy of this completed disclosure and all forms you give to the landlord or tenant in your files for at least 6 years.

_____ told me that he/she is a nonlawyer and may not give legal advice, cannot tell me

Rule 10-2.1(b) of the Rules Regulating The Florida Bar defines a paralegal as a person who works under the supervision of a member of The Florida Bar, an out-of-state lawyer engaged in the authorized practice of law in Florida, or a foreign lawyer engaged in the authorized practice of law in Florida, and who performs specifically delegated substantive legal work for which the supervising lawyer is responsible. Only persons who meet the definition may call themselves paralegals.

_____ informed me that he/she is not a paralegal as defined by the rule and cannot c

_____ told me that he/she may only type the factual information provided by me in w

_____ may not tell me what to put in the form and may not complete the form for me.

_____ may ask me factual questions to fill in the blanks on the form and may also tel

Landlord or Tenant:

☐ I can read English.

☐ I cannot read English but this notice was read to me by

Name: _____ in

Language: _____ which I understand.

Landlord or Tenant Signature

Licensee Signature

Landlord or Tenant Signature (2nd)

Date

RESIDENTIAL LEASE FOR APARTMENT OR UNIT IN MULTI-FAMILY RENTAL HOUSING (OTHER THAN A DUPLEX) INCLUDING A MOBILE HOME, CONDOMINIUM, OR COOPERATIVE (FOR A TERM NOT TO EXCEED ONE YEAR)

(Not To Be Used For Commercial, Agricultural, or Other Residential Property)

WARNING: IT IS VERY IMPORTANT TO READ ALL OF THE LEASE CAREFULLY. THE LEASE IMPOSES IMPORTANT LEGAL OBLIGATIONS.

AN ASTERISK (*) OR A BLANK SPACE () INDICATES A PROVISION WHERE A CHOICE OR A DECISION MUST BE MADE BY THE PARTIES.

NO CHANGES OR ADDITIONS TO THIS FORM MAY BE MADE UNLESS A LAWYER IS CONSULTED.

I. TERMS AND PARTIES. This is a lease (the "Lease") for a period of

Months: beginning

Start Date: and ending

End Date: between

Landlord Name: and

Tenant Name(s):

(In the Lease, the owner, whether one or more, of the property is called "Landlord." All persons to whom the property is leased are called "Tenant.")

Landlord's E-mail:

Landlord's Telephone:

Tenant's E-mail:

Tenant's Telephone:

II. PROPERTY RENTED.

Unit No.: in the building located at

Street Address: known as

Building Name: ,

City: Florida

Zip Code: together with the following furniture and appliances:

Furniture/Appliances:

[List all furniture and appliances. If none, write "none."] (In the Lease, the property leased, including furniture and appliances, if any, is called "the Premises.")

III. COMMON AREAS. Landlord grants to Tenant permission to use, during the Lease Term, along with others, the common areas of the building and the development of which the Premises are a part.

IV. RENT PAYMENTS AND CHARGES.

Rent Amount: \$ each on the

Day: day of each

Period: [month/week]

(A "Rental Installment Period" shall be a month if rent is paid monthly, and a week if rent is paid weekly.)

Tenant shall pay with each rent payment all taxes imposed on the rent by taxing authorities. The amount of taxes payable on the beginning date of the Lease is \$

Tax Amount: \$ for each installment. The Lease Payment as of the date the Lease begins is \$

Lease Payment: \$

☐ Unless this box is checked, the Lease Payments must be paid in advance beginning

Advance Date:

If the tenancy starts on a day other than the first day of the month or week, the rent shall be prorated from

Prorate From: through

Prorate To: in the amount of \$

Prorate Amount: \$ due on

Prorate Due Date:

V. DEPOSITS, ADVANCE RENT, AND LATE CHARGES. In addition to the Lease Payments described above, Tenant shall pay the following: (check only those items that apply)

☐ Security deposit of \$ to be paid upon signing the Lease.

☐ Advance rent of \$ for Rental Installment Periods of to be paid upon signing the Lease.

☐ Pet deposit of \$ to be paid upon signing the Lease.

☐ Late charge of \$ for each Lease Payment made more than days after the date it is due.

☐ Bad check fee of \$ (not to exceed \$20.00 or 5% of the Lease Payment, whichever is greater).

☐ Other:

☐ Other:

☐

VI. SECURITY DEPOSITS AND ADVANCE RENT. If Tenant has paid a security deposit or advance rent the following provisions apply:

A. Landlord shall hold the money in a separate interest-bearing or non-interest-bearing account in a Florida banking institution for the benefit of Tenant. If Landlord deposits the money in an interest-bearing account, Landlord must pay Tenant interest of at least 75% of the annualized average interest paid by the bank or 5% per year simple interest, whichever Landlord chooses. Landlord cannot mix such money with any other funds of Landlord or pledge, mortgage, or make any other use of such money until the money is actually due to Landlord; or

B. Landlord must post a surety bond in the manner allowed by law. If Landlord posts the bond, Landlord shall pay Tenant 5% interest per year. At the end of the Lease, Landlord will pay Tenant, or credit against rent, the interest due to Tenant. No interest will be due Tenant if Tenant wrongfully terminates the Lease before the end of the Lease Term.

C. If Landlord rents 5 or more dwelling units, then within 30 days of Tenant's payment of the advance rent or any security deposit, Landlord must notify Tenant in writing of the manner in which Landlord is holding such money, the interest rate, if any, that Tenant will receive, and when such payments will be made.

VII. NOTICES.

Landlord's Agent: is Landlord's Agent. All notices to Landlord and all Lease

Agent Address:

unless Landlord gives Tenant written notice of a change. Landlord's Agent may perform inspections on behalf of Landlord, subject to Article XII below. All notices to Landlord shall be given by certified mail, return receipt requested, or by hand delivery to Landlord or Landlord's Agent.

Any notice to Tenant shall be given by certified mail, return receipt requested, or delivered to Tenant at the

Premises. If Tenant is absent from the Premises, a notice to Tenant may be given by leaving a copy of the notice at the Premises.

VIII. USE OF PREMISES. Tenant shall use the Premises only for residential purposes. Tenant also shall obey, and require anyone on the Premises to obey, all laws and any restrictions that apply to the Premises. Landlord will give Tenant notice of any restrictions that apply to the Premises.

If the Premises are located in a condominium or cooperative development, the Lease and Tenant's rights under it are subject to all terms of the governing documents for the project, including, without limitation, any Declaration of Condominium or proprietary lease, and any restrictions, rules, and regulations now existing or hereafter adopted, amended, or repealed.

☐ Unless this box is checked, Landlord may adopt, modify, or repeal rules and regulations for the use of common areas

Occasional overnight guests: not more than

Max Nights: nights in any calendar month (If left blank, 7). Landlord's written approval is required to allow an

☐ Unless this box is checked or a pet deposit has been paid, Tenant may not keep or allow pets or animals on the Premises

☐ Unless this box is checked, no smoking is permitted in the Premises.

Tenant shall not keep any dangerous or flammable items that might increase the danger of fire or damage on the Premises without Landlord's consent.

Tenant shall not create any environmental hazards on or about the Premises.

Tenant shall not destroy, deface, damage, impair, or remove any part of the Premises belonging to Landlord, nor permit any person to do so.

☐ Unless this box is checked, Tenant may hang pictures and install window treatments without Landlord's consent, provided

Tenant must act, and require all other persons on the Premises to act, in a manner that does not unreasonably disturb any neighbors or constitute a breach of the peace.

IX. MAINTENANCE. Landlord and Tenant agree that the maintenance of the Premises must be performed by the person indicated below:

A. Landlord's Required Maintenance. Landlord will comply with applicable building, housing, and health codes relating to the Premises. If there are no applicable codes, Landlord shall maintain and repair the roofs, porches, windows, exterior walls, screens, foundations, floors, structural components, and steps, and keep the plumbing in reasonable working order.

B. Elective Maintenance. Fill in each blank space with Landlord or Tenant to show who will take care of the item noted. If a space is left blank, Landlord will be required to take care of that item.

☐ Landlord ☐ Tenant Smoke Detectors

☐ Landlord ☐ Tenant Extermination of rats, mice, roaches, ants, wood-destroying organisms, and bedbugs

☐ Landlord ☐ Tenant Locks and keys

☐ Landlord ☐ Tenant Clean and safe condition of outside areas

☐ Landlord ☐ Tenant Garbage removal and outside garbage receptacles

☐ Landlord ☐ Tenant Running water

☐ Landlord ☐ Tenant Hot water

☐ Landlord ☐ Tenant Lawn

☐ Landlord ☐ Tenant Heat

☐ Landlord ☐ Tenant Air conditioning

☐ Landlord ☐ Tenant Furniture

☐ Landlord ☐ Tenant Appliances

☐ Landlord ☐ Tenant Fixtures

☐ Landlord ☐ Tenant Pool (including filters, machinery, and equipment)

☐ Landlord ☐ Tenant Heating and air conditioning filters

☐ Landlord ☐ Tenant Other:

Tenant's responsibility, if any, indicated above, shall not include major maintenance or major replacement of equipment.

Landlord shall be responsible for major maintenance or major replacement of equipment, except for equipment for which Tenant has accepted responsibility.

Major maintenance threshold: \$

Tenant shall be required to vacate the Premises on 7 days' written notice, if necessary, for extermination pursuant to this subparagraph. When vacation of the Premises is required for extermination, Landlord shall not be liable for damages but shall abate the rent.

C. Tenant's Required Maintenance. At all times during the Lease Term, Tenant shall: (1) comply with all applicable building, housing, and health codes; (2) keep the Premises clean and sanitary; (3) remove all garbage in a clean and sanitary manner; (4) keep all plumbing fixtures clean, sanitary, and in repair; and (5) use and operate in a reasonable manner all electrical, plumbing, sanitary, heating, ventilating, air conditioning, and other facilities and appliances, including elevators.

X. UTILITIES. Tenant shall pay all charges for hook-up, connection, and deposit for providing all utilities except:

Landlord-paid utilities:

which Landlord agrees to provide at Landlord's expense.

XI. SERVICEMEMBER. If Tenant is a member of the United States Armed Forces on active duty or state active duty or a member of the Florida National Guard or United States Reserve Forces, the Tenant has rights to terminate the Lease as provided in Section 83.682, Florida Statutes, the provisions of which can be found in the attachment to this Lease.

XII. LANDLORD'S ACCESS TO PREMISES. Landlord or Landlord's Agent may enter the Premises in the following circumstances:

A. At any time for the protection or preservation of the Premises.

B. After reasonable notice to Tenant at reasonable times for the purpose of repairing the Premises.

C. To inspect the Premises; make necessary or agreed-upon repairs, decorations, alterations, or improvements; supply agreed services; or exhibit the Premises to prospective or actual purchasers, mortgagees, tenants, workers, or contractors under any of the following circumstances: (1) with Tenant's consent; (2) in case of emergency; (3) when Tenant unreasonably withholds consent; or (4) if Tenant is absent from the Premises for a period of at least one-half a Rental Installment Period.

XIII. PROHIBITED ACTS BY LANDLORD. Landlord is prohibited from taking certain actions as described in Section 83.67, Florida Statutes, the provisions of which can be found in the attachment to this Lease.

XIV. CASUALTY DAMAGE. If the Premises are damaged or destroyed other than by wrongful or negligent acts of Tenant or persons on the Premises with Tenant's consent, so that the use of the Premises is substantially impaired, Tenant may terminate the Lease within 30 days after the damage or destruction and Tenant will immediately vacate the Premises. If Tenant vacates, Tenant is not liable for rent that would have been due after the date of termination.

XV. DEFAULTS/REMEDIES. Should a party to the Lease fail to fulfill their responsibilities under the Lease or need to determine whether there has been a default of the Lease, refer to Part II, Chapter 83, entitled Florida Residential Landlord and Tenant Act which contains information on defaults and remedies. A copy of the current version of this Act is attached to the Lease.

☐ XVI. ASSIGNMENT AND SUBLEASING. Unless this box is checked, Tenant may not assign the Lease or sublease all or part of the Premises.

XVII. RISK OF LOSS. Landlord shall not be liable for any loss by reason of damage, theft, or otherwise to the contents, belongings, and personal effects of the Tenant, or Tenant's family, agents, employees, guests, or visitors. Nothing contained in this provision shall relieve Landlord or Tenant from responsibility for loss, damage, or injury caused by its own negligence or willful conduct.

XVIII. SUBORDINATION. The Lease is automatically subordinate to the lien of any mortgage encumbering the fee title to the Premises from time to time.

XIX. LIENS. The interest of the Landlord shall not be subject to liens for improvements by the Tenant as provided in Section 713.10, Florida Statutes. Tenant shall notify all parties performing work on the Premises at Tenant's request that the Lease does not allow any liens to attach to Landlord's interest.

XX. APPROVAL CONTINGENCY. Application fee paid by:

☐ Landlord

☐ Tenant

If such approval is not obtained prior to commencement of Lease Term, either party may terminate the Lease by written notice to the other given at any time prior to approval by the association, and if the Lease is terminated, Tenant shall receive return of deposits specified in Article V, if made. Tenant agrees to use due diligence in

applying for association approval.

Association security deposit paid by:

- ☐ Landlord
☐ Tenant

XXI. RENEWAL/EXTENSION. The Lease can be renewed or extended only by a written agreement signed by both Landlord and Tenant, but in no event may the total Lease Term exceed one year. A new lease is required for each year.

XXII. LEAD-BASED PAINT. Check and complete if the dwelling was built before January 1, 1978.

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, Lessors must disclose the presence of known lead-based paint and/or lead-based paint hazards in the dwelling. Lessees must also receive a federally approved pamphlet on lead poisoning prevention.

Lessor's Disclosure (initial):

- ☐ (a)(i) Known lead-based paint and/or lead-based paint hazards are present in the housing (explain below):

- ☐ (a)(ii) Lessor has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.

- ☐ (b)(i) Lessor has provided the Lessee with all available records and reports pertaining to lead-based paint (list below):

- ☐ (b)(ii) Lessor has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

Lessee's Acknowledgment (initial):

- ☐ (c) Lessee has received copies of all information listed above.

- ☐ (d) Lessee has received the pamphlet Protect Your Family From Lead in Your Home.

Agent's Acknowledgment (initial):

- ☐ (e) Agent has informed the Lessor of the Lessor's obligations under 42 U.S.C. 4852d and is aware of his/her responsibilities.

Certification of Accuracy: The following parties have reviewed the information above and certify, to the best of their knowledge, that the information provided by the signatory is true and accurate.

Lessor's Signature

Date

Lessor's Signature

Date

Lessee's Signature

Date

Lessee's Signature

Date

Agent's Signature

Date

XXIII. ATTORNEYS' FEES. In any lawsuit brought to enforce the Lease or under applicable law, the party in whose favor a judgment or decree has been rendered may recover its reasonable court costs, including attorneys' fees, from the non-prevailing party.

XXIV. MISCELLANEOUS.

A. Time is of the essence of the performance of each party's obligations under the Lease.

B. The Lease shall be binding upon and for the benefit of the heirs, personal representatives, successors, and permitted assigns of Landlord and Tenant.

C. The agreements contained in the Lease set forth the complete understanding of the parties and may not be changed or terminated orally.

D. No agreement to accept surrender of the Premises from Tenant will be valid unless in writing and signed by Landlord.

E. All questions concerning the meaning, execution, construction, effect, validity, and enforcement of the Lease shall be determined pursuant to the laws of Florida.

F. The place for filing any suits or other proceedings with respect to the Lease shall be the county in which the Premises is located.

G. Landlord and Tenant will use good faith in performing their obligations under the Lease.

H. RADON GAS DISCLOSURE: Radon is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed federal and state guidelines have been found in buildings in Florida. Additional information regarding radon and radon testing may be obtained from your county health department.

XXV. TENANT'S PERSONAL PROPERTY. TENANT MUST INITIAL IN THIS BOX _____ FOR THE FOLLOWING PROVISION TO APPLY. BY SIGNING THIS RENTAL AGREEMENT, THE TENANT AGREES THAT UPON SURRENDER, ABANDONMENT, OR RECOVERY OF POSSESSION OF THE DWELLING UNIT DUE TO THE DEATH OF THE LAST REMAINING TENANT, AS PROVIDED BY CHAPTER 83, FLORIDA STATUTES, THE LANDLORD SHALL NOT BE LIABLE OR RESPONSIBLE FOR STORAGE OR DISPOSITION OF THE TENANT'S PERSONAL PROPERTY.

The Lease has been executed by the parties on the dates indicated below.

Landlord's Signature

Date

Landlord's Signature

Date

Tenant's Signature

Date

Tenant's Signature

Date

This form was completed with the assistance of:

Name of Individual:

Name of Business:

Address:

Telephone Number:

Copy of Current Version of Florida Residential Landlord and Tenant Act, Part II, Chapter 83, Florida Statutes to Be Attached

Early Termination Fee / Liquidated Damages Addendum

- ☐ I agree, as provided in the rental agreement, to pay \$
 (an amount that does not exceed two months' rent) as liquidated damages or an early termination fee.
- ☐ I do not agree to liquidated damages or an early termination fee, and I acknowledge that the landlord may seek damages.

Landlord's Signature

Date

Landlord's Signature

Date

Tenant's Signature

Date

Tenant's Signature

Date